

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2239
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 14, article 1, Arizona Revised
3 Statutes, is amended by adding section 41-1971, to read:

4 41-1971. Child care grant program; child care infrastructure
5 fund; administration; purpose; definitions

6 A. THE CHILD CARE GRANT PROGRAM IS ESTABLISHED TO GRANT MONIES TO
7 ELIGIBLE APPLICANTS TO PROVIDE ANY OF THE FOLLOWING SERVICES TO FAMILIES
8 IN THIS STATE WITH CHILD CARE NEEDS:

9 1. EARLY LEARNING AND CHILD CARE IN UNDERSERVED COMMUNITIES THAT
10 HAVE HISTORICALLY EXPERIENCED A LACK OF ACCESSIBLE AND AFFORDABLE CHILD
11 CARE, INCLUDING RURAL AREAS.

12 2. EARLY LEARNING AND CHILD CARE IN LOW-INCOME AND MODERATE-INCOME
13 COMMUNITIES.

14 3. CHILD CARE DURING NONSTANDARD WORKING HOURS, SUCH AS EVENINGS
15 AND WEEKENDS.

16 4. CHILD CARE FOR INFANTS AND TODDLERS.

17 5. CHILD CARE FOR CHILDREN WHO HAVE DISABILITIES.

18 B. THE DEPARTMENT SHALL ADMINISTER THE GRANT PROGRAM AND MAY ADOPT
19 RULES, POLICIES AND PROCEDURES TO CARRY OUT THE PURPOSES OF THIS SECTION.
20 AN ELIGIBLE APPLICANT SHALL SUBMIT AN APPLICATION FOR A GRANT ON A FORM
21 PRESCRIBED BY THE DEPARTMENT.

22 C. THE DEPARTMENT SHALL PROVIDE ASSISTANCE TO GRANTEEES RELATING TO
23 ANY OF THE FOLLOWING:

24 1. CHILD CARE FACILITY AND CAPACITY EXPANSION.

25 2. BUSINESS STRATEGY AND OPERATIONS SUPPORT AND TRAINING.

26 3. INCREASING OR ENHANCING EARLY LEARNING AND CHILD CARE CAPACITY
27 FOR FEDERALLY RECOGNIZED INDIAN TRIBES, NATIONS OR COMMUNITIES.

1 D. THE DEPARTMENT MAY CONTRACT WITH A QUALIFIED COMMUNITY PARTNER
2 ORGANIZATION IN THIS STATE TO ASSIST IN ADMINISTERING THE GRANT PROGRAM.

3 E. THE CHILD CARE INFRASTRUCTURE FUND IS ESTABLISHED CONSISTING OF
4 LEGISLATIVE APPROPRIATIONS, GRANTS, GIFTS, [APPLICABLE TAX CREDITS,]
5 CONTRIBUTIONS AND DEVICES. THE DEPARTMENT SHALL ADMINISTER THE FUND. ON
6 NOTICE FROM THE DEPARTMENT, THE STATE TREASURER SHALL INVEST AND DIVEST
7 MONIES IN THE FUND AS PROVIDED BY SECTION 35-313, AND MONIES EARNED FROM
8 INVESTMENT SHALL BE CREDITED TO THE FUND. MONIES IN THE FUND ARE
9 CONTINUOUSLY APPROPRIATED AND MAY BE USED TO PAY THE ADMINISTRATIVE COSTS
10 OF IMPLEMENTING THIS SECTION AND TO ESTABLISH THE CHILD CARE GRANT PROGRAM
11 PURSUANT TO THIS SECTION. MONIES MAY ALSO BE USED FOR ANY OF THE
12 FOLLOWING:

13 1. PLANNING AND DESIGNING HIGH QUALITY EARLY LEARNING AND CHILD
14 CARE INFRASTRUCTURE.

15 2. ACQUIRING PROPERTY FOR HIGH QUALITY EARLY LEARNING AND CHILD
16 CARE INFRASTRUCTURE OR CHILD CARE DEVELOPMENT PROJECTS.

17 3. REPAIRING, IMPROVING AND RENOVATING EARLY LEARNING AND CHILD
18 CARE INFRASTRUCTURE THAT WOULD EXPAND THE CAPACITY OF THE INFRASTRUCTURE.

19 4. CHILD CARE INFRASTRUCTURE DEVELOPMENT PROJECTS, INCLUDING DIRECT
20 PROJECT MANAGEMENT COSTS.

21 5. CONTRACTING WITH THIRD PARTIES, INCLUDING NONPROFIT
22 ORGANIZATIONS AND COMMUNITY DEVELOPMENT FINANCIAL INSTITUTIONS, TO ASSIST
23 IN THE ADMINISTRATION OF CHILD CARE INFRASTRUCTURE ACTIVITIES.

24 6. CHILD CARE INFRASTRUCTURE CONSTRUCTION COSTS AND EXPENSES.

25 7. CHILD CARE START-UP EXPENSES, INCLUDING WORKFORCE DEVELOPMENT,
26 LICENSING, INSURANCE AND ACCREDITATION.

27 8. EARLY CHILD CARE INFRASTRUCTURE ADAPTATIONS REQUIRED BY A
28 LICENSING AGENCY IN THIS STATE.

29 9. PROVIDING SUPPORT TO ESTABLISH OR EXPAND CHILD CARE PROVIDER
30 OPERATIONS AND INFRASTRUCTURE, INCLUDING TRAINING AND TECHNICAL
31 ASSISTANCE.

32 10. ANY OTHER COSTS THAT THE DEPARTMENT DETERMINES TO BE NECESSARY
33 TO CARRY OUT EARLY CHILD CARE INFRASTRUCTURE ACTIVITIES IN THIS STATE.

34 F. FOR THE PURPOSES OF THIS SECTION:

35 1. "CHILD CARE" HAS THE SAME MEANING PRESCRIBED IN SECTION 36-881.

36 2. "CHILD CARE FACILITY" HAS THE SAME MEANING PRESCRIBED IN SECTION
37 36-881.

38 3. "CHILD CARE PROVIDERS" HAS THE SAME MEANING PRESCRIBED IN
39 SECTION 46-801.

40 4. "ELIGIBLE APPLICANT" MEANS ANY OF THE FOLLOWING:

41 (a) A CHILD CARE FACILITY.

42 (b) A CHILD CARE PROVIDER.

43 (c) A PERSON [OR ENTITY] THAT IS INTERESTED IN OPENING A CHILD CARE
44 FACILITY OR BECOMING A CHILD CARE PROVIDER IN THIS STATE.

45 (d) A PERSON THAT IS ENGAGED IN UNLICENSED OR UNCERTIFIED CHILD
46 CARE AND THAT IS INTERESTED IN BECOMING A LICENSED OR CERTIFIED CHILD CARE
47 PROVIDER IN THIS STATE.

1 5. "QUALIFIED COMMUNITY PARTNER ORGANIZATION" MEANS AN ENTITY WITH
2 DEMONSTRABLE EXPERIENCE IN EITHER:

3 (a) PROVIDING TECHNICAL ASSISTANCE TO CHILD CARE PROVIDERS IN THIS
4 STATE.

5 (b) SUPPORTING THE ESTABLISHMENT OR EXPANSION OF CHILD CARE
6 PROVIDERS IN THIS STATE.

7 Sec. 2. Legislative findings

8 The legislature finds that:

9 1. Early educational investments are severely underfunded.

10 2. There is a shortage of affordable and accessible child care in
11 this state.

12 3. Early learning and child care providers have limited finances to
13 facilitate expansion of robust child care infrastructure.

14 4. High quality early child care investment promotes regional
15 economic growth by increasing the number of jobs available within the
16 workforce and providing consistent, accessible and reliable child care
17 that is necessary to allow parents to participate in the labor force.

18 5. Quality early learning and child care facilities are
19 developmentally appropriate, inclusive of children with disabilities and
20 create a healthy and supportive environment for a child's brain
21 development are needed for the well-being of children and early learning
22 and child care staff.

23 6. Sustained public investment and technical assistance are
24 necessary to overcome constraints and to incentivize the development and
25 expansion of early learning and child care resources in this state.

26 7. The purpose of this act is to provide financial assistance to
27 eligible applicants for activities that promote increased early learning
28 and child care capacity across this state.

29 Enroll and engross to conform

30 Amend title to conform

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